

NEVER MARRIED

In a society where the age-old institution of matrimony itself is changing rapidly, can we expect the laws to decipher newer terms of commitment?

■ By Damayanti Datta

They were crazy about each other. Away from home and in a new city, there was nothing to stop her from moving into his flat. Together they created their own fortress. He carried on paying the home loan, just like before, and she started picking up everyday bills, to keep it fair. But slowly their apparently invincible citadel began to crack at the seams. The first time it happened, they were fighting over a plate of undercooked eggs. But eventually, shouting-pushing-shoving-slapping over household nitty-gritties became a way of life. When they finally split up, there was nothing "fair" about it. The flat was in his name and even though she had spent the last three years buying his food and paying for his electricity, she was left holding a great big zero. In a society where the phrase "living in sin" reeks of disapproval and the laws talk only about the legally-wedded wife, she walked out, too humiliated to reveal the reason even to her friends.

Will she cheer the nation's tentative foray into the broad grey zone between living together casually and "till death do us part"? Even a generation back, living together was so scandalous and out of the ordinary that it was scarcely contemplated as an alternative to conventional marriage. In the new millennium, as the country hurtles into the present, modernising and urbanising at blinding speed, men and women

THE LAW

2003 Justice Malimath Committee recommends to the Law Commission that if a woman has been in a live-in relationship for a reasonable time, she should enjoy the rights of a wife.

2005 The Protection of Women from Domestic Violence Act (2005) provides protection to women at the hands of their husbands as well as live-in partners.

2008 In January, the Supreme Court validated long-term live-in relationships as marriages. A bench headed by Justice Arijit Pasayat with Justice P. Satiasivan declared children born out of such a relationship will no longer be called illegitimate.

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